

SUPREME COURT THE STATE OF NEW YORK:
COUNTY OF KINGS

-----X
HSBC BANK USA, N.A., AS TRUSTEE FOR Index No: 39351/2007
THE REGISTERED HOLDERS OF ACE
SECURITIES CORP. HOME EQUITY LOAN
TRUST, SERIES 2005-HE2, ASSET BACKED **NOTICE OF SALE**
PASSTHROUGH CERTIFICATES

Plaintiff.

-against-

ANNETTE SANDERSON, DONNA DANIELS,
MORTGAGE ELECTRONIC REGISTRATION
SYSTEMS, INC. AS NOMINEE FOR
FREMONT INVESTMENT & LOAN,
DEPARTMENT OF HOUSING
PRESERVATION AND DEVELOPMENT,
CITY OF NEW YORK DEPARTMENT OF
TRANSPORTATION PARKING VIOLATIONS
BUREAU, CITY OF NEW YORK
ENVIRONMENTAL CONTROL BOARD,
HOME HEATING OIL CORP., MALCOLM
PARKER, CURTIS DOUGLAS, LORRAINE
JONES, FOREST MCGEE, SHILEY
MCGEE, NEW YORK DEPARTMENT OF
FINANCE, 35 DECATUR STREET LLC

Defendants.

-----X
TAKE NOTICE that the within is a true copy of a Notice of Sale for 35 Decatur
Street, Brooklyn, New York 11216 in KINGS County.

McCABE, WEISBERG & CONWAY, LLC

Dated: April 17, 2026
Melville, NY

By: 

GEORGE FRANKE, ESQ.
Attorneys for Plaintiff
One Huntington Quadrangle, Suite 4N25
Melville, NY 11747
(631) 812-4084
(855) 845-2584 facsimile

To:

Lee M. Nigen, Esq.
Attorney for Annette Sanderson
858 East 23rd Street
Brooklyn, New York 11210

35 Decatur Street LLC
106-28 Queens Blvd., Suite 750494
Forest Hills, NY 11375

Jason J. Rebhun, Esq.
Law Office of Jason J. Rebhun P.C.
Attorneys for Intervenor-Defendant, 35 Decatur Street LLC
225 Broadway
38th Floor
New York, NY 10007

Petroff Amshen LLP
Attorneys for Intervenor-Defendant, 35 Decatur Street LLC
1790 Coney Island Avenue
Brooklyn, NY 11230

Marc W. Brown, Esq.
Phillips Lytle, LLP
Attorney for U.S. Bank National Association as Trustee and Assignee for Mortgage Electronic
Registration Systems, Inc., as Nominee for Fremont Investment & Loan
437 Madison Ave.
New York, New York 10022

Houser & Allison, PC
Attorney for U.S. Bank National Association as Trustee and Assignee for Mortgage Electronic
Registration Systems, Inc., as Nominee for Fremont Investment & Loan
60 East 42nd Street, Suite 1148
New York, NY 10165

Annette Sanderson
9060 Heritage Bay
Orlando, FL 32836

Donna Daniels
9060 Heritage Bay
Orlando, FL 32836

City of New York Department of Transportation Parking Violations Bureau
Corporation Counsel
100 Church Street
New York, NY 10007

City of New York Environmental Control Board
Corporation Counsel
100 Church Street
New York, NY 10007

Home Heating Oil Corp.
PO Box 564520
College Point, NY 11356

NEW YORK CITY LAW DEPARTMENT
100 Church St., Fl 3
New York, NY 10007
Attorney for DEPT OF HOUSING PERSERVATION AND DEVELOPMENT

Malcolm Parker
35 Decatur Street, Apt 1
Brooklyn, New York 11216

Curtis Douglas
35 Decatur Street, Apt 2
Brooklyn, New York 11216

Lorraine Jones
35 Decatur Street, Apt 2
Brooklyn, New York 11216

Forest McGee
35 Decatur Street, Apt 3
Brooklyn, New York 11216

Shirley McGee
35 Decatur Street, Apt 3
Brooklyn, New York 11216

Office of Legal Affairs
Attorneys for New York City Department of Finance
Linda Susswein, Esq.
345 Adams Street
Brooklyn, New York 11201

Simon Shamoun, Esq., Referee
430 Bay Ridge Parkway
Brooklyn, New York 11209

NOTICE OF SALE
SUPREME COURT - COUNTY OF KINGS

HSBC BANK USA, N.A., AS TRUSTEE FOR THE REGISTERED HOLDERS OF ACE
SECURITIES CORP.,

Plaintiff,

Against

ANNETTE SANDERSON, DONNA DANIELS, et al

Defendant(s)

Pursuant to a Judgment of Foreclosure and Sale, duly entered 03/07/2023, I, the undersigned Referee, will sell at public auction, in Room 224 of Kings County Supreme Court, 360 Adams Street, Brooklyn, NY 11201 on 5/14/2026 at 2:30PM, premises known as 35 Decatur Street, Brooklyn, New York 11216, and described as follows:

ALL that certain plot piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Borough of Brooklyn, County of Kings, City and State of New York.

Block 1855 Lot 64

The approximate amount of the current Judgment lien is \$1,238,267.87 plus interest and costs. The Premises will be sold subject to provisions of the aforesaid Judgment of Foreclosure and Sale; The aforementioned auction will be conducted in accordance with the Court System's COVID-19 mitigation protocols and as such all persons must comply with social distancing, wearing masks and screening practices in effect at the time of this foreclosure sale;
Index # 39351/2007

Simon Shamoun, Esq., Referee.

MCCABE, WEISBERG & CONWAY, LLC, 10 Midland Avenue, Suite 205, Port Chester, NY 10573

Dated: 3/17/2026 File Number: 560-2461 CA

Index No. 39351/2007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

HSBC BANK USA, N.A., AS TRUSTEE FOR THE
REGISTERED HOLDERS OF ACE SECURITIES CORP.
HOME EQUITY LOAN TRUST, SERIES 2005-HE2, ASSET
BACKED PASSTHROUGH CERTIFICATES

PLAINTIFF,

-AGAINST-

ANNETTE SANDERSON, DONNA DANIELS, MORTGAGE
ELECTRONIC REGISTRATION SYSTEMS, INC. AS
NOMINEE FOR FREMONT INVESTMENT & LOAN,
DEPARTMENT OF HOUSING PRESERVATION AND
DEVELOPMENT, CITY OF NEW YORK DEPARTMENT OF
TRANSPORTATION PARKING VIOLATIONS BUREAU,
CITY OF NEW YORK ENVIRONMENTAL CONTROL
BOARD, HOME HEATING OIL CORP., MALCOLM
PARKER, CURTIS DOUGLAS, LORRAINE JONES, FOREST
MCGEE, SHILEY MCGEE, NEW YORK DEPARTMENT OF
FINANCE, 35 DECATUR STREET LLC

DEFENDANTS.

NOTICE OF SALE

McCABE, WEISBERG & CONWAY, LLC

Attorneys for PLAINTIFF

One Huntington Quadrangle, Suite 4N25

Melville, NY 11747

(631) 812-4084

(855) 845-2584 facsimile

SUPREME COURT OF THE STATE OF NEW YORK:
COUNTY OF KINGS

-----X
HSBC BANK USA, N.A., AS TRUSTEE FOR THE
REGISTERED HOLDERS OF ACE SECURITIES
CORP. HOME EQUITY LOAN TRUST, SERIES
2005-HE2, ASSET BACKED PASSTHROUGH
CERTIFICATES

INDEX NO: 39351/2007

Plaintiff,

AFFIRMATION OF SERVICE

-against-

ANNETTE SANDERSON, DONNA DANIELS,
MORTGAGE ELECTRONIC REGISTRATION
SYSTEMS, INC. AS NOMINEE FOR FREMONT
INVESTMENT & LOAN, DEPARTMENT OF
HOUSING PRESERVATION AND DEVELOPMENT,
CITY OF NEW YORK DEPARTMENT OF
TRANSPORTATION PARKING VIOLATIONS
BUREAU, CITY OF NEW YORK
ENVIRONMENTAL CONTROL BOARD, HOME
HEATING OIL CORP., MALCOLM PARKER,
CURTIS DOUGLAS, LORRAINE JONES, FOREST
MCGEE, SHILEY MCGEE, NEW YORK
DEPARTMENT OF FINANCE, 35 DECATUR
STREET LLC

Defendant.

-----X

STATE OF NEW YORK
COUNTY OF WESTCHESTER

I, Monica Brown affirm this 17th day of April 2026, under the penalties of perjury, under the laws of New York State, which may include a fine or imprisonment, that the foregoing is true and correct, and I understand that this document may be filed in an action or proceeding in a court of law.

I am over the age of eighteen years and am not a party herein, that I maintain my place of employment in Westchester County and that on April 17th, 2026 I caused a copy of the enclosed **Notice of Sale** to go into the mail by placing said motion with the mailroom of McCabe, Weisberg & Conway, LLC, who, in their normal course of duties, placed the motion and exhibits in a properly

sealed envelope, with proper postage, for first class U.S. Mail delivery to the addresses below:

Lee M. Nigen, Esq.
Attorney for Annette Sanderson
858 East 23rd Street
Brooklyn, New York 11210

35 Decatur Street LLC
106-28 Queens Blvd., Suite 750494
Forest Hills, NY 11375

Jason J. Rebhun, Esq.
Law Office of Jason J. Rebhun P.C.
Attorneys for Intervenor-Defendant, 35 Decatur Street LLC
225 Broadway, 38th Floor
New York, NY 10007

Petroff Amshen LLP
Attorneys for Intervenor-Defendant, 35 Decatur Street LLC
1790 Coney Island Avenue
Brooklyn, NY 11230

Marc W. Brown, Esq.
Phillips Lytle, LLP
Attorney for U.S. Bank National Association as Trustee and Assignee for Mortgage Electronic
Registration Systems, Inc., as Nominee for Fremont Investment & Loan
437 Madison Ave.
New York, New York 10022

Houser & Allison, PC
Attorney for U.S. Bank National Association as Trustee and Assignee for Mortgage Electronic
Registration Systems, Inc., as Nominee for Fremont Investment & Loan
60 East 42nd Street, Suite 1148
New York, NY 10165

Annette Sanderson
9060 Heritage Bay
Orlando, FL 32836

Donna Daniels
9060 Heritage Bay
Orlando, FL 32836

City of New York Department of Transportation Parking Violations Bureau
Corporation Counsel
100 Church Street
New York, NY 10007

City of New York Environmental Control Board
Corporation Counsel
100 Church Street
New York, NY 10007

Home Heating Oil Corp.
PO Box 564520
College Point, NY 11356

NEW YORK CITY LAW DEPARTMENT
100 Church St., Fl 3
New York, NY 10007
Attorney for DEPT OF HOUSING PERSERVATION AND DEVELOPMENT

Malcolm Parker
35 Decatur Street, Apt 1
Brooklyn, New York 11216

Curtis Douglas
35 Decatur Street, Apt 2
Brooklyn, New York 11216

Lorraine Jones
35 Decatur Street, Apt 2
Brooklyn, New York 11216

Forest McGee
35 Decatur Street, Apt 3
Brooklyn, New York 11216

Shirley McGee
35 Decatur Street, Apt 3
Brooklyn, New York 11216

Office of Legal Affairs
Attorneys for New York City Department of Finance
Linda Susswein, Esq.
345 Adams Street
Brooklyn, New York 11201

Simon Shamoun, Esq., Referee
430 Bay Ridge Parkway
Brooklyn, New York 11209

Dated: April 17, 2026


